

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JASWINDER SINGH KHALSA,

Petitioner

VS.

SAT SANGAT KAUR KHALSA,

Respondent

) Case Number: FDV-24-818060

) Hearing Date: June 16, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FAM. CODE 6344 ATTORNEY'S FEES AND COSTS FOR PREVAILING
PARTY IN DV ACTION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Jaswinder Singh Khalsa (Father) and Respondent Sat Sangat Kaur Khalsa (Mother). They share 1 minor child: Quanyin Sofia Khalsa (DOB: 4/2/13).
- 2) On 12/3/24, Father filed a Request for Domestic Violence Restraining Order (DVRO). The Court held a long-cause hearing on Father's request for DVRO on 9/9/25, 9/10/25, 11/10/25, and 12/29/25.
- 3) On 12/29/25, the Court granted Father's DVRO request and issued a three-year Restraining Order After Hearing (ROAH) against Mother, which included protection for the minor child. See ROAH file dated 1/14/26.
- 4) On 4/30/26, Father filed a Request for Order seeking \$142,254.70 in attorney's fees and costs pursuant to Family Code section 6344 asserting that he should not have to pay to be protected from his abusive partner. It is Father's position that Mother has the ability to pay. Father states his parents helped pay his legal fees and he intends to repay them. Father attaches as Exhibit 1

1 Mother's Income and Expense Declaration (dated 2/3/26), indicating that her total monthly
2 expenses equal an estimated \$9,231, which includes discretionary spending. Father attaches as
3 Exhibit 2 Mother's home value posted on Zillow for \$812,300.

4 5) On 4/30/26, Father filed a Memorandum of Points and Authorities in support of his Request for
5 Order.

6 6) On 4/30/26, attorney Courtney Glickman filed a declaration in support of Father's request for
7 attorney's fees and costs.

8 7) On 6/2/26, Mother filed a Responsive Declaration in opposition to Father Request for Order.

9 Mother asserts she cannot afford to pay Father's legal fees, Father's legal fees are excessive and
10 unreasonable, and she tried to settle with Father on multiple occasions to avoid litigation. Mother
11 states she has significant state (\$134,000) and federal (\$495,210) tax liabilities on her home, no
12 income as of 3/30/26, and relies on loans from her own mother for living expenses (who she owes
13 \$80,000).

14 8) On 6/2/26, Mother filed an updated Income and Expense Declaration in which she lists her total
15 monthly expenses as \$6,145.

16 9) On 6/2/26, attorney, Kathleen L. Morgan, filed a declaration in opposition to Father's Request for
17 Order, asserting that Father unnecessarily retained three attorneys to represent him. Mother's
18 attorney states that Mother incurred \$20,409 in legal fees for 10 hours at \$250 an hour and has an
19 outstanding bill of \$10,221.10.

20 10) On 6/3/26, Mother filed a Memorandum of Points and Authorities in support of her Responsive
21 Declaration.

22 11) On 6/9/26, Father and two attorneys, Jonathan S. Leo and Courtney Glickman, each filed Reply
23 Declarations in support of Father's Request for Order, asserting that the case was more complex
24 than typical domestic violence proceedings because the issues presented involved the minor
25 child's safety and emotional well-being. Father states he initially tried to save costs by hiring his
26 own father, Jonathon S. Leo, to represent him; however, Mr. Leo lacked family law experience,
27 and ultimately Father hired two attorneys from Moradi Neuffer LLP. Father disputes the financial
28 information Mother presented.
29

1 12) On 6/9/26, Father filed a Memorandum of Points and Authorities in support of his Reply
2 Declaration

3 **B. Findings and Order**

4 1) Father's request for attorney's fees and costs pursuant to Family Code section 6344 is DENIED.

5 2) The Court finds Father was the prevailing party in the DVRO matter at issue.

6 3) However, the Court cannot find that Mother has the ability to pay given her significant state
7 (\$134,000) and federal (\$495,210) tax liabilities, lack of income since 3/30/26, and reliance on
8 loans from her own mother for living expenses (who she asserts she owes \$80,000). Mother's
9 ability to pay is a required finding pursuant to 6344(c).

10 4) Based on the foregoing, the Court need not assess whether Father's attorney's fees and costs were
11 reasonable and necessary.

12 5) The Court will prepare the Findings and Order After Hearing.

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